



POLICE DEPARTMENT

February 23, 2009

MEMORANDUM FOR: Police Commissioner

Re: Sergeant Valerie Clarke
Tax Registry No. 910613
77 Precinct
Disciplinary Case No. 83009/07

The above-named member of the Department appeared before me on October 2 and October 3, 2008, charged with the following:

1. Said Sergeant Valerie Clarke, assigned to the Internal Affairs Bureau, on or about May 11, 2007, during an official Department investigation conducted by IAB Group 25 pursuant to provisions of Patrol Guide Section 206-13, did wrongfully make false and misleading statements, to wit: said Sergeant indicated during her GO-15 that she did not attempt to solicit information from or discuss an ongoing IAB investigation involving herself with other members of the service regarding their answers to questions given by investigators assigned to IAB Group 25, when in fact Sergeant Clarke sought to solicit said information from and discussed the ongoing investigation with a member of the service, known to the Department.

P.G. 203-08, Page 1, Paragraph 1 – PUBLIC CONTACT – GENERAL

2. Said Sergeant Valerie Clark, assigned to the Internal Affairs Bureau, on or about February 6, 2007, did wrongfully and without just cause prevent or interfere with an official Department investigation, to wit: said Sergeant met with an individual known to the Department on February 6, 2007, and engaged in a conversation with said individual about an ongoing IAB investigation involving said Sergeant.

P.G. 203-10, Page 1, Paragraphs 2(D) & 3 – PUBLIC CONTACT –
PROHIBITED CONDUCT

3. Said Sergeant Valerie Clark, assigned to the Internal Affairs Bureau, on or about February 6, 2007, did wrongfully engage in conduct prejudicial to the good order, efficiency, and discipline of the Department, to wit: said Sergeant engaged in a conversation with an individual known to the Department about an ongoing IAB investigation involving said Sergeant.

COURTESY • PROFESSIONALISM • RESPECT

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

The Department was represented by Eric Hicks, Esq., Department Advocate's Office, and the Respondent was represented by Eric Sanders, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Not Guilty of Specification No. 1 and Guilty of Specification Nos. 2 and 3.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Detective Darren Bullock, Senior Police Administrative Aide Jenny Korotun, and Sergeant Kevin Byrnes as witnesses.

Detective Darren Bullock

Bullock, a 19-year member of the Department, is currently assigned to the Intelligence Division, Municipal Securities Section. Prior to his current assignment, he worked in the Office of the Chief of Internal Affairs (CHIA). While there, he investigated a case involving the Respondent and allegations of sexual misconduct. As a part of that investigation, he conducted an Official Department Interview of Police Administrative Aide Jenny Korotun on February 1, 2007. At the end of that interview,

Bullock instructed Korotun "not to speak to anyone in regards to the investigation, or anything that took place during our PG hearing, anything that was said by her." On February 5, 2007, Korotun informed Bullock that the Respondent had asked to speak with her. At approximately 8:00 a.m. the next day, Bullock gave Korotun a recording device that she had agreed to wear. With the device, Korotun recorded a conversation with the Respondent.

[Department's Exhibit [DX] 1 and 1A are the compact disc recording and transcript of Korotun's conversation with the Respondent, dated February 6, 2007:

Respondent: I'm very pissed off.

Korotun: About what?

R: Extremely pissed off. You know exactly what I'm talking about.

K: I didn't know.

R: Yes.

K: The whole office was (inaudible)

R: I don't know.

K: You think people are happy?

R: You think did I, did I cause it? Did I cause this?

K: That's what I'm saying, I don't know. I'm pissed off too. . . .

Everybody, you know saying that it was only you, you know?

R: Why though?

K: Cause everybody's like a hawk is checking whose, whose what saying.

R: Everybody was questioned?

K: Yeah.

R: You were upset I heard too.

K: What do you mean you heard?

R: I heard that you were upset.

K: How is this spreading like that?

R: Is that true though?

K: Huh?

R: Were you upset?

K: How you heard that?

R: People talk, Jenny.

K: So its only two people know about that.

R: I don't know whoever you went down with.

K: No, when I . . .

R: I wasn't there.

K: Mm hm.

R: But I don't want to put you in a bad situation or me, you're not supposed to talk about it. They told you that.

K: Yeah.

R: But don't talk about it with [REDACTED] or anybody else.

K: I don't talk about it.

R: But, did it have to do with you or with me?

K: Huh, well you know the whole . . .

R: Did they talk about that we all went out?

K: Huh, what do you mean? That night?

R: That night that we all went out.

K: They talk about the whole . . .

R: The gym attire.

K: Huh, about you know.

R: About [REDACTED]

K: Huh?

R: About

K: How the office is and around

R: Yeah, yeah I don't really care about that.

K: But that's what they're mostly asking you they're saying, huh?

R: About [REDACTED]

K: But they ask about him and everybody else, yeah but I

R: Okay, no, no.

K: They ask about everybody pretty much in the office.

R: How they act?

K: Any incidents, anything like that.

R: Oh no, no, so you said no.

K: I wasn't giving them, like, I don't know nothing. And I told him I'm like . . .

R: We'll see.

K: You guys been there for years together.

R: But they never asked you if you and [REDACTED] did something together?

K: Huh, oh they have nothing.

R: They never asked if we all went out that night?

K: They asked me about [REDACTED], what happened and what's going on in the office.

R: Oh yeah, nothing ever happened in the office.

K: Yeah.

R: You told them about [REDACTED]?

K: Huh, what about her?

R: That you had a problem with her.

K: Huh, I didn't talk about her.

R: Well, they didn't have a problem with me.

K: They asked about, you know, supervision.

R: Oh.

K: Yeah.

R: Did you say I was good?

K: Mm hm. I didn't make assumptions. I try to keep it in office. I wouldn't talk about you in there.

R: Now

K: Huh, about my experience in the office.

R: Oh God, I mean, was it good or was it bad?

K: Huh, I said whatever it was.

R: (inaudible)

K: Huh, you know how Records are crazy, so I said crazy.

R: You said I was crazy?

K: I said everybody was crazy.

R: You did? That's funny.

.....

R: We never had this conversation, you can't really talk about, you know what I'm saying?

K: Yeah.

R: It doesn't matter to me.

K: Were you already questioned?

R: Not yet.

K: (inaudible)

R: I guess, he asked how I dress?

K: Huh?

R: Did he ask how I dressed?

K: Umm.

R: You think I dress provocatively, you should have told them I wear shorts.

K: All you wear is shirts or the tight pants.

R: You told them I do?

K: No, I didn't.

R: Oh.

K: But I'm telling you that.

R: Do I look bad?

K: No, you asked me if I could see your shorts in the tight pants.

R: Yeah, yeah, you should say that. Did he ask if you could see my nipples under my shirts?

K: Huh?

R: If you could see my nipples underneath my shirts?

K: Hm.

R: They said I ever exposed myself?

K: No, they didn't ask me that.

R: Did I have something going on with [REDACTED]

K: Huh?

R: Did I have something going on with [REDACTED]

K: Did you?

R: No, absolutely not.

K: Okay. All right.

R: They asked that, right?

K: Huh?

R: Did they ask that?

K: You know they don't ask me questions like that.

....

R: I did nothing wrong.

K: Right.

R: But been good to everybody and now I get investigated.

K: Well, this is all, you know why it started?

R: Joe.

K: Exactly.

R: Because of him.

K: Well, why did he make allegations, what is the problem here?

R: I have no idea.

K: Well, they never told you what it was about?

R: No.

K: You know about us being PG'ed.

R: Of course I do. And I'm very, very upset.

K: Oh man.

R: How was the guy who asked you questions, black guy, nice?

K: The guy, yeah, they were nice, but it's just like pressure.

R: Yes.

K: I never, first of all, I never been in this kind of stuff so.

R: I heard [REDACTED] was pissed, [REDACTED]

K: Why?

R: Cause she had to go down.

K: Yeah, why was she pissed though?

R: I don't know, she don't want to be involved in this.

K: Okay.

R: I'm surprised [REDACTED] didn't say something about you. But if they didn't, then you would know.

K: Yeah.

R: Supposedly I had an affair with [REDACTED] or I was exposing, I was hitting on [REDACTED] Could you fucking imagine that bastard? How the fuck did I get pulled into this?

J: Well, you're a supervisor.

R: Yeah. As long as you didn't lie, you know.

K: I tried to keep it very on the, I don't know nothing.

R: Were you in there a long time?

K: Huh?

R: You were in there a long time?

K: Enough, enough so. They were asking pretty much the same questions different way.

R: Yeah.

K: That's all. Oh my God even like . . .

R: When it's over . . .

K: When? How long you think it's taking?

R: I don't know.

K: Usually like cases like that?

R: I think I'm gonna get called down this week.

K: Yeah. Okay, you're gonna have fun.

R: Oh yeah, oh yeah.

K: Okay.

R: They asked if we ever gone out drinking?

K: Huh, yeah.

R: Did they ask what time you worked that night or no?

K: Huh?

R: They asked if you worked that night?

K: They asked about everything they wanted to know, I mean, I pretty much I try you know, didn't say nothing to them.

R: Yeah, but certain questions you have to answer.

K: Yeah, well general my opinionated.

R: In your opinion did you think I had something with J [REDACTED]?

K: Huh, they didn't ask me that.

R: Oh. So my opinion did they say I was a good supervisor or no?

K: They cannot give opinion.

R: Oh.

K: They don't ask opinion, they don't give me opinion, it's they doing the questions.

R: Oh, you can't remember one question that was, like, specific?

K: How's that, you know, the environment in the office?

R: So what do you think it is, is it bad?

K: Huh?

R: Now or back then?

K: No, I mean, this is not to do with our new you know.

R: It's old?

K: Yeah, it's about the old, you know.

R: Oh.

K: It's not about our new office.

R: And what was it like?

K: Huh?

R: What was it like? I'm curious.

K: Office, what you mean, like what do you mean?

R: I don't know, I don't know what they asked.

K: Well, it was stressful, you know.

R: Was it stressful? To you it might have been.

K: Well, I'm new, everything's stressful for me. The whole NYPD thing was stressful for me. I been here how many months and I'm already in this.

R: And why are you in it?

K: I'm being so frustrated.

R: Why are in it?

K: I don't know. I think they're witnessing everybody, right?

R: Yeah.

K: They did the whole of the, you know, they did the whole office.

R: I thought it had to do with [REDACTED] getting transferred.

K: Is it?

R: I don't know.

K: I don't know. It's like, they're not telling me anything what it's about.

R: Probably

K: No, they just asking me my opinion, they don't give me any info. . . . If I ask them what it's about, they cannot give me anything what it's about.

R: So, what did they want to know?

K: But I'm like look in you records.

R: And how was it?

K: I told them I gave them like you know, right you know, I was training you know. My new experience, I don't know how to compare it to anything else. I haven't worked in any other place.

R: And that's what you said?

K: Yes. This is my first experience with it.

R: Were they mad?

K: Huh?

R: It doesn't matter. If you want to tell me you tell me, if you don't you don't have to.

K: They were like, I was like what, what you asking me? I didn't get it, they were very general.

R: I'm very upset, Jenny.

K: What are you gonna do?

R: What can I do?

K: I don't know. How about anybody in the office . . .

R: What?

K: How about other people, are they saying anything?

R: Yeah, I know what it's about. It's about everything that went on in Records. How come we . . .

K: People talk?

R: Yeah.

K: People do talk?

R: Of course they talk.

K: Really, I'm like you know everybody keeping quiet and looking at each other like a hawk.

R: Yeah, because everybody's giving everybody up.

K: Really?

R: Yeah.

K: Who's giving up who?

R: I don't know. I don't know specifics, but I'm sure, who goes to meal, who goes late.

K: You know everybody's schedule?

R: They do.
K: Who?
R: CHIA for one.
K: They checked the log books?
R: I guess they did.
K: So they know the time of everybody?
R: Yeah, you can't, you know, just do your job.
K: Yeah, well we have a lot of people who like to talk.
R: Are they still it's, who's there?
K: Huh. Hopefully they're not going to call me again.
R: I don't know.
K: I hope not.
R: But if it has nothing to do with [REDACTED] I wouldn't worry about it.
K: But isn't he the one?
R: Yeah.
K: So how's nothing to do with [REDACTED]?
R: [REDACTED] and you, I mean.
K: Oh.
R: That's what I was worried about. Cause I never asked you. I never cared.
K: Yeah, but then why would you, I'm a witness . . .
R: Cause I was your supervisor.
K: Wouldn't I be a . . .
R: I don't know.
K: . . . subject if I
R: I don't know. But you don't know what other people said, oh I heard that he and Jenny had an affair . . .
K: Uh huh.
R: . . . and that's why he got thrown out.
K: Yeah but . . .
R: I'm not gonna say I heard that because I didn't hear that.
K: Right.
R: I heard his wife thought he was fooling around and he wanted to leave. And I was on vacation when he left.
K: Okay.
R: So that's all.
K: I mean, I heard other stories, but you know.
R: Yeah.
K: It was a long time before I got there.
R: Right.
K: That there was a whole lot going on.
R: What?
K: People talk in the office, right?
R: About what though?
K: Huh, I don't know, the whole investigation.
R: On me, you mean?

K: Mm hm, you and [REDACTED]. I heard that you (inaudible)
R: You did?
K: Yeah.
R: That I had something with [REDACTED]
K: Yeah, earlier.
R: Get the fuck out of here. It's not true.
K: I don't know. You know people talk. I thought people, people make stories up like crazy.
R: I think [REDACTED] had something to do with [REDACTED]. That's why she hated you.
K: But I never had anything with [REDACTED]
R: I know.
K: Nothing going on even. Like I was not even like around with him in the office, like, I never, like you know, showed him anything.
R: Did they ask about [REDACTED]?
K: Huh, who's [REDACTED]?
R: [REDACTED], the gay guy.
K: [REDACTED] wasn't even, he wasn't in the office when I got there.
R: I know.
K: What did he doing with it? Huh?
R: I don't know.
K: What [REDACTED]?
R: I bet you [REDACTED] made a mistake about things.
K: But [REDACTED] got to the office when?
R: I don't know what the complaint is, Jenny.
K: Okay.
R: I don't know.
K: Okay.
R: That I treated people differently?
K: What, you had your faves?
R: Right.
K: You had your favorites?
R: Yeah.
K: You had your buddies?
R: Right.
K: You know.
R: But you were one of my buddies so. They said that?
K: Huh, no just you know, your two favorite buddies.
R: The girls?
K: Yeah.
R: Hell yeah, yeah.
K: How are they? They total antisocial in the office now?
R: They're pissed off that they got called down.
K: Well everybody got called down.
R: Everybody is getting their special dates.
K: How are they?

R: Basically it has more to do with, I don't want to ask them cause I don't want to, you know.

K: Mm hm.

R: I really don't care. This whole thing has to do with [REDACTED].

K: Okay.

R: And we never had this conversation, we came down to smoke.

K: Right.

R: Cause I always liked you, Jenny.

K: Right.

R: You're on probation. You don't want to get into trouble.

K: Yeah.

R: I have nothing to hide.

K: Right.

R: But I heard it's about the way I dressed in the beginning.

....

K: Huh, no they asked you know how, how you was as a supervisor.

R: Well, how do you think I was seriously?

K: Huh?

R: You said I was good?

K: No.

R: You said I was bad?

K: They cannot tell me nothing. You know they cannot tell me nothing.

R: So you said I was bad?

K: Huh?

R: You said I was good or bad?

K: I didn't give my opinion because that's what they were looking for.

....

R: So we never had this conversation.]

On February 22, 2007, Bullock was present at an Official Department Interview that his supervisor, Sergeant Byrnes, conducted of the Respondent. During the interview, Byrnes asked the Respondent if she had spoken to anyone in regards to the investigation. The Respondent denied speaking to anyone. On May 11, 2007, Byrnes interviewed the Respondent for a second time. During this second interview, Byrnes asked the Respondent if she had discussed any part of the investigation with anyone other than her attorney. The Respondent again denied speaking to anyone. [DX 2 and 2A are the tape

and transcript of the May 11, 2007 interview. In the interview, the Respondent responded negatively when asked if she at any time attempted "to solicit information by questioning some civilian or uniformed members of the service regarding their answers, its questions given by investigators . . . regarding allegations against [her]." The investigator proceeded to name 14 members of the service, one of whom was Korotun. After each name, the Respondent replied, "No." She also responded negatively when asked if during conversations with any of her co-workers did she "seek any information from them as to what questions they were asked and what their responses were to the IAB investigators conducting . . . interviews."]

According to Bullock, the Respondent affected the investigation by speaking with Korotun. Bullock explained that based on the Respondent's conversation with Korotun, it was clear that the Respondent had knowledge of questions that had been asked of witnesses. For this reason, it prevented him from recalling witnesses for follow-up interviews. He explained, "It really prevented us from going back and calling other witnesses that we had previously called before we spoke to [the Respondent] to ask them any questions that she may have said that may have been relevant to the investigation so it would have been hard for us to really have a witness come in and really be objective and be honest." When Bullock was transferred out of the Internal Affairs Bureau (IAB) in May 2007, the investigation was still ongoing.

On cross-examination, Bullock testified that the sexual misconduct allegation against the Respondent was made by Detective J [REDACTED] one of the Respondent's subordinates in the IAB Records Unit. Bullock learned from Korotun that she once kissed [REDACTED] after he drove her home from an office social function.

According to Bullock, [REDACTED] stated in an interview that when he kissed Korotun, his penis was outside of his pants and he caressed Korotun's breasts. Bullock knew from a prior investigation that [REDACTED] was married. Bullock explained that this prior investigation stemmed from an allegation that [REDACTED] had downloaded a conversation with his wife during which it came out that he [REDACTED] had had extramarital affairs with both Korotun and the Respondent.

Bullock testified that he did not monitor the conversation that Korotun recorded with the Respondent. The recording device needed to be manually started and stopped by Korotun. According to Bullock, the Respondent stated at least once in the conversation that she should not be talking about the investigation. The Respondent also told Korotun that she was "pissed off" about the allegations that people were making about her. The Respondent expressed to Korotun that she was insulted and upset.

Bullock testified that although he was the primary investigator on the Respondent's case, he was not the primary interviewer in the February 22, 2007 Official Department Interview. In that interview, Byrnes asked the Respondent questions about her body parts, including her breasts and vaginal area. It appeared to Bullock that the Respondent was upset by these questions, which were asked prior to the question concerning whether or not she had spoken to anyone about the investigation.

Senior Police Administrative Aide Jenny Korotun

Korotun is currently assigned to the Office of the Deputy Commissioner of Management and Budget. Between May 2006 and May 2008 she was assigned to IAB. In a February 1, 2007 Official Department Interview regarding the Respondent, Bullock

instructed her to keep private all of the information that was discussed in the interview and to notify him if anyone asked her questions about it. On February 5, 2007, the Respondent passed Korotun in the hallway of the IAB building on Hudson Street and told her that she wanted to speak with her. Korotun replied, "Yeah, sure," and walked away. Korotun notified Bullock that day, and Bullock asked her to record the conversation with the Respondent. The next morning before work Korotun met with Bullock and Byrnes. The investigators gave Korotun a recording device and showed her how to use it. At work that day, the Respondent asked again to speak with Korotun.

Korotun and the Respondent went downstairs to the docking area on the side of the building. According to Korotun, the Respondent asked her what she talked about with the investigators. Korotun testified, "[The Respondent] asked me about what kind of conversation, what did I talk to the investigators about, what was discussed, and what I discussed, all the members of her office, [REDACTED] or [REDACTED] some events that happened certain nights."

On voir dire, Korotun testified that the recording device was a wristwatch, and she had to press a button to activate it. Korotun stated that she pressed the button when her conversation with the Respondent began and pressed another button to turn the device off when the conversation ended. She recorded continuously for 17 minutes. Korotun listened to the recording for the first time on September 24, 2008. She identified the voices on the recording as hers and the Respondent's. Korotun testified that, as she recalled, the recording is an accurate representation of the actual conversation that she had with the Respondent on February 6, 2007. On continued direct examination, Korotun testified that that same day she returned the recording device to Byrnes and a Lieutenant

Donnelly.

On cross-examination, Korotun testified that although people in her command continuously teased her about an alleged relationship that she had with [REDACTED] she could not recall if she was upset or crying about it when she first saw the Respondent on February 6, 2007. They first saw each other in the third floor hallway of the Hudson Street building, and the Respondent asked Korotun if she had time to talk. Korotun reiterated that they went downstairs to the docking area. Korotun started the recording device while going down in the elevator. According to Korotun, she and the Respondent did not really talk while in the elevator because there were a lot of other people present. When they exited the elevator, there were people in the lobby. It was a very short distance from the elevator to the door to the loading dock. Once outside on the loading dock, the Respondent initiated a general social conversation. The conversation then turned to what was going on in the Records Unit, the investigation, and Korotun's Official Department Interview. Korotun testified that the Respondent was stressed out because of everybody being investigated. She explained that it was common knowledge throughout the entire unit that there were multiple investigations going on. She further explained that it was known that people were being called out of the office for Official Department Interviews. According to Korotun, however, people in the unit did not discuss the case or their interviews with each other.

Korotun testified that it was the Respondent who initiated the conversation about the investigation. According to Korotun, the Respondent asked her about the questions in her interview. At one point, the Respondent asked Korotun if she was upset. According to Korotun, this question was in reference to her (Korotun) being upset over the

investigation, not over being teased about [REDACTED]. The topic of Korotun allegedly having a relationship with [REDACTED] did, however, come up later in the conversation. During the conversation, the Respondent commented to Korotun a few times that they should not be talking about the case. Korotun stated that even after making these comments, however, the Respondent continued to ask her questions about the investigation. Once, though, immediately after the Respondent said that they should not be talking about the investigation, it was Korotun who brought up the investigation again by asking the Respondent if she had been questioned already. The investigators never instructed Korotun that she should wait for the Respondent to initiate the conversation. The Respondent expressed to Korotun during the conversation that she was upset because all of her subordinates were being asked questions about her nipples and various body parts. According to Korotun, when the conversation turned to the Respondent's attire, it was "more of a joke conversation." During the conversation, the Respondent asked Korotun if she had been questioned about a Detective [REDACTED] and also told Korotun not to lie to investigators. Korotun testified that the Respondent's demeanor did not change throughout the conversation. Korotun turned off the recording device only after she returned to the third floor and was no longer in the Respondent's presence.

Later that day, Korotun saw the Respondent again in the hallway. Korotun pressed the button on the recording device to turn it on again. Korotun and the Respondent went into the bathroom together. They did not have any conversation before entering the bathroom. Korotun did not recall who initiated the conversation, but they talked about office stuff as they stood at the sink. It was a short conversation, and Korotun did not recall if the Respondent mentioned that she was very upset. In fact,

Korotun stated that she did not recall the Respondent specifically say in either of the conversations that day that she (the Respondent) was very upset. The Respondent did, however, seem stressed during both conversations.

Korotun conceded that there could have been portions of conversation that day that were not successfully recorded. As she was instructed, Korotun pressed a button when she wanted to start or stop the device. She could not be certain, though, whether or not she was operating the device properly.

On redirect examination, Korotun stated that the recording encompassed the entire conversation that she had with the Respondent on February 6, 2007.

On recross-examination, Korotun reiterated that people in the command teased her about having a relationship with [REDACTED]. Korotun testified that she complained to the Respondent about it, but the Respondent did not do anything in response. Korotun subsequently reported the situation to IAB. She explained that she wrote a letter to IAB in which she discussed the treatment she received and the hostile work environment.

Korotun testified that prior to her February 1, 2007 Official Department Interview, there was discussion in the office about the investigation. Korotun explained that people started getting called for interviews after [REDACTED] was transferred out of the unit, but nobody knew exactly what the underlying allegations were. Both uniform and civilian members of the unit were wondering what the investigation was about. Korotun heard rumors that an allegation involved her relationship with [REDACTED] that [REDACTED]'s wife was making up allegations, and that the Respondent was engaged in inappropriate behavior at the workplace. According to Korotun, at no point during the investigation did the Respondent attempt to influence her Official Department Interview testimony.

Korotun testified that after recording the conversations with the Respondent on February 6, 2007, she kept the recording device on her person. At the end of the day, Byrnes and Donnelly retrieved the device from her.

Sergeant Kevin Byrnes

Byrnes, a 22-year member of the Department currently assigned to IAB Group 25, participated in the investigation of the Respondent's case. He testified that on February 5, 2007, he met with Korotun to give her instructions on how to use the recording device. He showed her that there was one button to start the recording and another button to turn it off. The next morning, he met with Korotun again. This time, he reinstructed her on how to use the device and turned the device over to her. He did not recall Korotun having any questions or concerns. The next day, Korotun returned the device. Byrnes testified that he examined the device and it did not appear to have been tampered with in any way. The device was brought to the Electronics Section, where the recording was downloaded onto a compact disc. When the device was retrieved from the Electronics Section, it still did not appear to have been tampered with.

On cross-examination, Byrnes testified that Donnelly and an Inspector Mason came up with the idea to have Korotun record her conversation with the Respondent. Byrnes explained that there were allegations that the Respondent was approaching people before and after they went in for Official Department Interviews and was asking them what they were going to say or did say during the interviews. Byrnes stated that while he was assigned to IAB he never received formal training in the use of recording devices. Before he met with Korotun, a technician in the Surveillance Unit spent five minutes

showing him how to use the watch recording device. He, in turn, spent five minutes showing Korotun how to use the device. Although Korotun was not a trained investigator, Byrnes expected her to be able to operate the device properly. Upon review of a worksheet, Byrnes testified that he retrieved the device from Korotun on February 7, 2007. He could not recall why he did not retrieve the device the previous day. He did not know what Korotun did with the device between the time her tour ended on February 6 and the time that the device was retrieved on February 7. Byrnes believed that the device recorded digitally, meaning that there was a chip inside it. He was never told whether or not the chip could be manipulated. Although Byrnes assumed that the conversation between Korotun and the Respondent would remain intact as it was recorded, he did not know that for certain. Byrnes could not recall if the device was in Korotun's bag or on her person when he met to retrieve it from her.

After retrieving the device from Korotun, it was secured somewhere in CHIA, but Byrnes could not recall exactly where. Similarly, Byrnes could not recall if the device was brought to the Electronics Section to be downloaded onto a compact disc that same day nor if he listened to the recording before the device was brought to the Electronics Section. He explained that most likely, but not necessarily, a worksheet would have been generated if the recording had been listened to before it was taken to be downloaded. Byrnes testified that he believed he was responsible for transporting the device to the Electronics Section, but he did not know if there was a worksheet about it. Byrnes stated that he seemed to remember being present while the Electronics Section technician downloaded the recording, but again there is no worksheet about it. Byrnes testified that when the technician downloaded the information, he did not know which sequence it was

recorded in. He stated that based on his understanding of recording devices, they record in the exact same sequence as the conversation. He further stated, however, that he has received from the Electronics Section compact discs on which tracks were not in chronological order. Besides using a tape recorder to record Official Department Interviews, Byrnes has not dealt with other recording devices.

Byrnes testified that he never gave Korotun instruction on whether or not to initiate conversation with the Respondent. He did not recall if he instructed Korotun to cut off the conversation if the Respondent said she did not want to talk about it. Byrnes stated that he has not listened to the conversation in a while, and he did not recall who initiated the conversation. According to Byrnes, it sounded in the conversation like the Respondent was trying to find out from Korotun what questions she was asked and what answers she gave in her Official Department Interview. Byrnes stated that because Korotun had already been interviewed, the Respondent was not attempting to influence Korotun's testimony. He testified that when the Respondent stated in the conversation words to the effect of, "We shouldn't be talking about this case," he interpreted it to mean, "Don't tell anyone we had this conversation."

Byrnes testified that the conversation between the Respondent and Korotun was not exclusively about what went on in the interview. The Respondent and Korotun told each other that they were upset about the things people were saying about them. In fact, a significant part of the conversation dealt with the fact that the Respondent's subordinates were saying nasty things about her. In a December 2006 conversation and in her February 22, 2007 Official Department Interview, the Respondent told Byrnes directly that she was upset about the nature of the allegations against her. Byrnes stated

that although most of the people he interviewed in this case told him that the allegations against the Respondent and [REDACTED] were not openly discussed in the Records Unit, a few people told him that they were. Most people were interviewed prior to Korotun's February 1, 2007 interview. Byrnes was aware that some of the people who were interviewed in this case were subordinates that the Respondent had disciplined in the past. Byrnes noted that the witnesses who claimed that the Respondent was asking questions about Official Department Interviews had expressed to him that the Respondent was making it a difficult place to work and had "somewhat of an axe to grind with [the Respondent]." Korotun was one subordinate who was having problems with the Respondent. Byrnes testified that he had to analyze in this case whether or not these witnesses had more credibility than the Respondent. He explained that his decision to sustain the case against the Respondent for impeding the investigation or soliciting information was strictly based on the content of the recorded conversation with Korotun.

When asked if, based on his review of the recording, he thought that the Respondent was attempting to impede the investigation, Byrnes replied that he did not know if the Respondent intentionally impeded the investigation. He went on to explain, however, "[Since Korotun] was already interviewed, [the Respondent] wasn't attempting to sway her testimony or anything like that. But by finding out what [Korotun] did say might influence [the Respondent] as far as when she is interviewed in the future so she will know the steps of the investigation." Byrnes continued, "Was it a blatant attempt to impede? I don't know what was going through [the Respondent's] head, but by her having knowledge of what was asked during the confidential investigation is giving her a leg up, and that does impede the investigation."

Byrnes testified that during the May 2007 Official Department Interview, before the Respondent was asked whether she had solicited information from other members of the service about their interviews, she was asked about her sexual activity. Although the May interview dealt with the issue of whether or not the Respondent had spoken with Korotun about the case, at no point during the interview was the Respondent specifically asked whether or not she had a conversation with Korotun on February 6, 2007. Byrnes stated that he has been trained on how to engage in an investigation where there are alleged false statements. He explained that when determining whether a member of the service is intentionally making a false statement, the interviewer is supposed to ask the member a specific question. Once the member gives an answer, the interviewer should ask the question again to make sure that the member properly understood it. If there is documentary evidence that is inconsistent with the member's answer, the interviewer can confront the member with the evidence to see if the member wants to change his original answer. At no point during the May 2007 Official Department Interview was the Respondent shown the transcript from the recorded conversation with Korotun. Byrnes testified that although he was present at the interview, it was Bullock and Donnelly who asked questions of the Respondent. Byrnes stated that while the Respondent seemed upset during the February 2007 interview, she seemed indifferent and annoyed during the May interview. Byrnes testified that even though the Respondent was not specifically asked if she had a conversation with Korotun on February 6, 2007, the investigators believed that the questions that were asked were sufficient enough to sustain the charge against her. He further testified that the statement provided by the Respondent in the interview was a false and misleading response to what the investigators believed was an

accurate and thorough question.

On redirect examination, Byrnes testified that he felt at the time that he had a sufficient understanding as to how to use the watch recording device. When he gave the device to Korotun, he believed that she also had a sufficient understanding as to how to use it. At no point did Byrnes receive notice from the Electronics Section that the device had been tampered with in any way. Byrnes stated that in the normal course of an investigation he prefers that a witness does not know what questions are going to be asked of him. According to Byrnes, by knowing what questions Korotun had been asked, the Respondent interfered with the questioning in the February 2007 Official Department Interview. Byrnes explained that in general a person has an advantage if he has knowledge of the steps of the investigation. The language "at any time" was used in the interview question concerning whether or not the Respondent had solicited from other members of the service information on the investigation.

On recross-examination, Byrnes testified that he has seen interview subjects get confused by questions. This is why it is important to ask specific and narrowly tailored questions. Byrnes stated that he believed that was done in the Respondent's case. Byrnes did not ask the technician in the Electronics Section to check if the recording device had been tampered with. Byrnes testified that he had no way of knowing if the device had been tampered with or if Korotun turned the device off and on during the conversation with the Respondent.

On further redirect examination, Byrnes testified that at no point during the May 2007 Official Department Interview did the Respondent say she was confused by a question.

The Respondent's Case

The Respondent's attorney moved to dismiss the case. He argued that there is a specific manner in which false statement allegations are supposed to be investigated, and Byrnes conceded that this procedure was not adhered to. Specifically, according to the Respondent's attorney, the investigator was supposed to ask a specific question when trying to confront the Respondent on whether or not she made an intentional false statement, but nobody ever specifically asked the Respondent if she had a conversation with or attempted to solicit information from Korotun on February 6, 2007.

The Respondent testified in her own behalf.

Respondent Sergeant Valerie Clark

The Respondent is an 18-year member of the service. She testified that while assigned to IAB, she received training in how to perform investigations for false statements. According to the Respondent, there is a memo in the IAB Training Guide that dictates that an investigator should "refresh [the subject's] memory in regards to bringing an actual false statement, confront them with the actual event, and make sure that the person knows exactly what you are talking about before you question them." When asked if investigators are trained to ask general questions such as "any time," the Respondent replied, "No. They want to confront you with the actual event of what they are questioning you on, and then if you lie, then that is a false statement." When asked about confronting the subject, the Respondent explained, "Because . . . false statements is

a very heavy allegation, you could get terminated, they want to make sure that the person was actually given an opportunity to either say a different answer now that they are confronting them with the evidence, or they just want to make it clear that they know exactly what they are talking about when they are asking them a particular question.”

The Respondent testified that on December 29, 2006, [REDACTED] called her and alleged that she had exposed her nipples to him. That same day, the Respondent notified her inspector of the allegation, and the inspector generated an IAB log. The Respondent and Byrnes used to work together in the Transit Bureau, and she spoke to him about [REDACTED]'s allegation when she saw him in the hallway that day. She spoke to Byrnes about the allegation a second time at the IAB holiday party on January 8, 2007. Byrnes had not yet been assigned to the Respondent's case. According to the Respondent, multiple members in the unit knew about DiMartini's allegation.

The Respondent testified that in her February 22, 2007 Official Department Interview, the investigators questioned her on many subjects, including how she distributed overtime, what she wore to the gym, and if she ever exposed herself to [REDACTED]. Because the Respondent was upset, Byrnes told her after the interview something to the effect of, “This is all bullshit. Don't worry about it. We know [REDACTED] is crazy.” On May 11, 2007, the Respondent was interviewed a second time. According to the Respondent, before the interview started, Byrnes told her off the record that the interview was going to deal with an order that she had previously been given. Byrnes did not tell her which specific order he was referring to. The Respondent testified that Donnelly, Bullock, and Byrnes were all present at the interview, and they each took turns asking her questions. The Respondent stated that based on her training and

experience, interviews are supposed to have one lead interviewer. She explained that this is to maintain consistency and also to prevent the subject from getting confused or feeling attacked. The investigators told the Respondent that she was there to follow-up on her February interview, and they proceeded to ask her questions about various body parts and if she had had sexual relations with [REDACTED]. At no point during the interview did they ask her if she had engaged in a conversation with or attempted to solicit information from Korotun on February 6, 2007. They did ask her whether or not she had conversations with various members of her unit. The Respondent testified that she replied negatively because that was the truth. She recalled that at the February interview she had been instructed by Donnelly not to discuss the case with any other members of the service.

The Respondent testified that she recalled having a conversation with Korotun on February 6, 2007. According to the Respondent, one of the detectives in her unit told her that Korotun was crying in the hallway. When the Respondent walked out to the hallway to see what was going on, she saw Korotun wiping her eyes. Korotun asked the Respondent if she wanted to go downstairs to smoke a cigarette. The Respondent was in the middle of something and told Korotun that she would be free to go downstairs with her in five minutes. The Respondent explained that she wanted to go downstairs to see if Korotun was okay and also because she wanted a cigarette. Five minutes later, the Respondent met Korotun in the hallway again, and they went downstairs together. There were at least two other people in the elevator. The Respondent and Korotun proceeded to the loading dock area, and Korotun initiated conversation. Korotun told the Respondent that she was upset that people teased her about being the cause of [REDACTED]'s transfer and possible divorce. The Respondent conceded that she and Korotun had conversation

about the investigation. When asked why she engaged in conversation on that subject, the Respondent, replied, "Because [Korotun] was saying like she was a victim. I say to her, 'How do you think I feel?'" The Respondent explained that she was trying to comfort Korotun by letting her know that they both had the same aggravation going on. The Respondent stated that, in fact, her situation was worse than Korotun's because she was a supervisor. She explained, "I was just very upset that everybody was being questioned about certain things about me, and I was the supervisor there, and all my subordinates were being questioned about an allegation that was made by a detective that never happened." The Respondent testified that she had 13 subordinates in her command, and it was very hard to supervise them after the allegations against her arose. Although she did not have problems with [REDACTED] or Korotun, she did have problems with some of her other subordinates. She explained that there was a lot of gossip around the office, and she had recently needed to issue a Command Discipline.

The Respondent testified that her conversation with Korotun on February 6, 2007 lasted approximately ten minutes, or the amount of time needed to smoke a cigarette or two. When the Respondent had her first Official Department Interview less than three weeks later, nobody asked her about the conversation. The Respondent reiterated that nobody asked her about the conversation during the May 2007 follow-up interview either. At no point during the investigation was the Respondent confronted with a transcript of the conversation. According to the Respondent, she did not use information that she received from Korotun to tailor the answers in her interview.

On cross-examination, the Respondent testified that when she went downstairs with Korotun, she was not even sure if Korotun had been interviewed already. While

they spoke, there were other people very close by. During the conversation, the Respondent asked Korotun if she had been questioned about various detectives assigned to the command, the way that she (the Respondent) dressed, and if members of the command ever went out drinking together. The Respondent told Korotun, "We never had this conversation." The Respondent explained that she told Korotun this because she did not want Korotun "to go back upstairs and start talking about this whole [REDACTED] incident again and bringing it back to life."

The Respondent testified that although she has received some training on conducting investigations, she was never told how witnesses are to be instructed at the end of an Official Department Interview. In February 2007, the Respondent had been with IAB for six years. She knew from her years at IAB that you are not allowed to ask witnesses what they said in their interviews. The Respondent stated that she knows it is a serious thing when a member is read the Patrol Guide section on false statements at an Official Department Interview. She testified that in her May 2007 interview she did not answer off the top of her head but instead thought about the questions before giving answers. She further testified that when she was asked if she had at any time discussed other people's interviews with them, she was sure that she thought before answering. According to the Respondent, she did not recall at that point the conversation that she had had with Korotun three months earlier.

On redirect examination, the Respondent reiterated that at no point during the May interview was she confronted with a transcript of her February conversation with Korotun. Moreover, the investigators did not give her an opportunity to clarify or explain her answers.

On recross-examination, the Respondent reiterated that during the conversation with Korotun she was trying to make Korotun feel better. She stated that she was not attempting to make Korotun feel better so that Korotun would tell her what was said in her Official Department Interview.

MOTION TO DISMISS

The Respondent's attorney moved to dismiss the case because the investigators did not ask the Respondent specific enough questions in the May 11, 2007 Official Department Interview. The Court denies the motion because, in the case of Specification Nos. 2 and 3, the misconduct at issue does not relate at all to the May interview but rather relates exclusively to the Respondent's February conversation with Korotun.

As for Specification No. 1, which does relate to the Official Department Interview, the Court looks to Patrol Guide section 206-13, the section that deals with the interrogation of members of the service. This section dictates what an interrogating officer must do when interviewing a subject or witness in an official investigation. (Permit member to obtain counsel; inform member of the identity of the person in charge of the investigation, the interrogating officer, all persons present, witnesses or complainants; inform member of whether he is the subject or witness in the investigation, the nature of the accusation, information concerning all allegations, and the Department's policy regarding making false statements; permit representative of line organization to be present; conduct interrogation at reasonable hours; ensure that interrogation is recorded; do not use "off the record" questions, offensive language or threats, or promises of reward; regulate duration of question periods; and record all recesses.) Because the

Respondent's attorney did not provide evidence that the questioning or conduct of the Respondent's interrogators in any way violated this Patrol Guide procedure, the Court finds no ground for dismissal.

FINDINGS AND ANALYSIS

Specification No. 1

The Respondent stands charged with making false and misleading statements when she indicated during her May 11, 2007 Official Department Interview that she did not attempt to solicit information or discuss an ongoing IAB investigation involving herself with other members of the service when, in fact, she sought to solicit information from and discussed the ongoing investigation with Korotun. In the May interview, the Respondent was asked if she at any time attempted to solicit information by questioning members of the service about their answers to questions asked by investigators regarding the allegations against her. The Respondent responded, "No." The interviewer proceeded to name 14 members of the service, one of whom was Korotun. After each name, the Respondent replied, "No." The Respondent was then asked if during conversations with any of her co-workers did she "seek any information from them as to what questions they were asked and what their responses were to the IAB investigators conducting . . . interviews." Again, the Respondent replied, "No."

Patrol Guide section 203-08 (formerly Interim Order No. 4 of 2005) clearly provides that the Department will not bring false official statement charges in situations where the member of the Department merely denies an administrative charge of misconduct. Because a mere denial was all that the Respondent provided in her

interview, this Court cannot find her guilty of this Specification.

Accordingly, the Respondent is found Not Guilty of Specification No. 1.

Specification Nos. 2

The Respondent stands charged with preventing or interfering with an official Department investigation by engaging in the conversation with Korotun about the ongoing IAB investigation. Although the Respondent merely denied that she attempted to solicit information from or discuss the ongoing investigation with other members of the service, it is clear from her conversation with Korotun that that is, in fact, exactly what occurred. The recording of the conversation speaks for itself, and the Respondent's attorney supplied no proof that the recording was tampered with or edited in any way. On the recording the Respondent can be heard asking Korotun specific questions about the questions and answers exchanged in Korotun's Official Department Interview. ("Did they talk about that we all went out?" "They never asked if you and Joe did something together?" "They never asked if we all went out that night?" "You told them about [REDACTED]?" "Did they ask about [REDACTED]?" "Did you say I was good?" "Did he ask how I was dressed?" "Did he ask if you could see my nipples under my shirts?" "They said I ever exposed myself?" "Did I have something going on with [REDACTED]? . . . They asked that, right?" "They asked if we ever gone out drinking?" "Did they ask what time you worked that night or no?" "So, what did they want to know?")

Because Korotun had already been interviewed at the time of the conversation, it is not alleged that the Respondent attempted to influence Korotun's testimony in any way. The problem with the Respondent's conversation with Korotun is that it allowed the Respondent to ascertain information that she should not have had. By speaking to

Korotun about the investigation and asking Korotun questions about her interview, the Respondent was acquiring information that she could use advantageously in her own interview. Based on what she learned from Korotun, the Respondent was in a position to prepare and tailor her own interview answers in her favor. When the Respondent was finally called in to be interviewed several weeks after the conversation with Korotun, she was ready for it. It was in this manner that she interfered with the official Department investigation regarding the allegations against her. Accordingly, the Respondent is found Guilty of Specification No. 2.

Specification No. 3

It is also charged that by engaging in the conversation with Korotun about the ongoing investigation, the Respondent engaged in conduct prejudicial to the good order, efficiency, and discipline of the Department. In Disciplinary Case Nos. 75201/99, 75202/99 & 75203/99, the Court explained that when Patrol Guide section 203-10 “sets forth a prohibition against conduct prejudicial to the good order, efficiency and discipline of the Department and does not enumerate specific acts of misconduct, the provision’s purpose is to prohibit conduct that, although not specifically mentioned in the Patrol Guide or in other Department rules and regulations, is clearly wrong and contrary to the training and practices of a reasonable officer.”¹

It is clear to the Court that the Respondent’s conversation with Korotun (a witness that was possibly giving statements against her in an investigation against her) was inconsistent with the training and practices of a reasonable police officer. An investigation subject and witness sharing information with each other on an ongoing

¹ The clarification of Patrol Guide section 203-10 was noted in a post-trial Memorandum as part of the final decision made by the Police Commissioner in that case.

investigation is nothing short of a breakdown in the investigatory process. While any reasonable police officer would be expected to know this, it holds particularly true for the Respondent as a six-year member of IAB. Moreover, it is clear from the Respondent's statements to Korotun that she was, in fact, well aware at the time that she was engaging in misconduct. ("But I don't want to put you in a bad situation or me, you're not supposed to talk about it. They told you that." "We never had this conversation, you can't really talk about, you know what I'm saying?" "We never had this conversation, we came down to smoke.") Accordingly, the Respondent is found Guilty of Specification No. 3.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974).

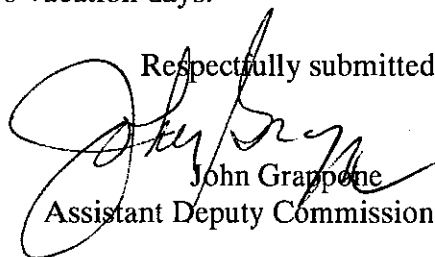
The Respondent was appointed to the Department on October 15, 1990. Information from her personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

Although the Respondent has not been found guilty of making false statements, the Court cannot emphasize enough the seriousness of the misconduct of which she has been found guilty. The Respondent has been found guilty of preventing or interfering with an official Department investigation and engaging in conduct prejudicial to the good order efficiency, and discipline of the Department by engaging in a conversation about an ongoing IAB investigation involving herself. By deliberately taking a subordinate aside and pumping her for confidential information, the Respondent was looking to subvert a

Department investigation, thereby undermining the integrity of the entire Departmental disciplinary system.

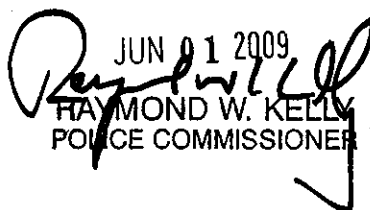
In Disciplinary Case No. 79808/04, a 14-year member with no prior disciplinary record forfeited 30 vacation days for discussing an official Department investigation with another member of the service (the subject of the investigation) without authorization. Because of the egregiousness of the misconduct and the subversive intent demonstrated by the Respondent in the current case, it is recommended that she be DISMISSED from the New York City Police Department, but that her dismissal be held in abeyance for a period of one year, pursuant to Section 14-115(d) of the Administrative Code, during which time she remains on the force at the Police Commissioner's discretion and may be terminated at any time without further hearings. In addition, the Court recommends that the Respondent forfeit 60 vacation days.

Respectfully submitted,



John Grappone
Assistant Deputy Commissioner – Trials

APPROVED



JUN 01 2009
RAYMOND W. KELLY
POLICE COMMISSIONER